

26STCV08492 26STCV08492

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-09-24

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Case Number: 26STCV08492 Hearing Date: September 24, 2026 Dept: 224

Bello v. Forest City Southpark Two, LLC

TENTATIVE RULING

The motion is DENIED without prejudice to file a timely, noticed motion. Defendants' request for monetary sanctions is DENIED.

Discussion

Plaintiff Priscilla Bello moves for a protective order that would limit defense counsel to one email per week. She also asks for an evidentiary sanction excluding video and electronic log data, and for monetary sanctions under Code of Civil Procedure section 2023.050. Defendants oppose on several grounds, including untimely service.

Moving papers must be filed and served at least 16 court days before the hearing. (Code Civ. Proc., § 1005, subd. (b).) When papers are served electronically, the notice period is extended by two court days. (Code Civ. Proc., § 1010.6, subd. (a)(3)(B).) The hearing is September 24, 2026. Counting back from that date, and excluding the September 7 court holiday, the last day to file was September 1, 2026. The last day to serve electronically was August 28, 2026.

Plaintiff filed the motion on September 2, 2026. The moving papers include no proof of service. Defendants state that they were served electronically the same day. (Opp. at p. 13.) The motion was therefore filed one court day late. With the electronic-service extension, it was served three court days late.

Defendants have objected to the defective notice rather than waived it. The court exercises its discretion not to consider the untimely motion. (Cal. Rules of Court, rule 3.1300(d).) The court does not reach the merits.

The denial is without prejudice to a properly noticed motion. Any renewed motion must comply with all applicable requirements, including the meet and confer declaration required by Code of Civil Procedure sections 2016.040 and 2031.060, subdivision (a).

Sanctions

Plaintiff's request for sanctions is denied because the motion is not considered.

Conclusion

The motion is DENIED without prejudice to file a timely, noticed motion. Defendants' request for monetary sanctions is DENIED.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.